serious human rights crisis. Yet, at this time many Western states would rather choose to believe that Myanmar is finally on course to become a full member of the international order and that the apparent moves towards democracy in recent years are going to solve everything.[3] In fact, however, the latest outbursts of violence have happened against the background of increasing democratisation, and even in the new democratic order, there are no political checks to curtail the anti-Rohingya rhetoric or violence. As in other instances, little thought is given to what the transition from an authoritarian regime to a conventional democracy might mean in a nation state that was constructed out of arbitrary colonial borders, with significant ethnic and religious differences.[4]

However, while there is no doubt that what is happening in Rakhine now is a form of ethnic cleansing involving sustained human rights abuses, aided, if not orchestrated, by the state, the charge in this book is that Myanmar now stands on the brink of genocide.[5] This is a serious assertion and the next chapter will consider what could possibly trigger the shift from systemic oppression to genocide. For almost seventy years the Rohingyas have been stateless in their own country, their economic livelihood has been dismantled and restrictions have been placed on their ability to marry and have children. At the moment, all the preconditions for genocide are in place and, so far, the world is choosing to ignore the warning signs.

Here we need first to understand just how international law defines the crime of genocide, and then consider the dynamics of previous genocides in the twentieth century. The term genocide has a very specific meaning in international law. It is defined in the UN Convention on the Prevention and Punishment of the Crime of Genocide, in force since 1951.[6] A key element of the convention is that genocide includes the ‘intent to destroy, in whole or in part, a national, ethnical, racial or religious group’. This can include killing, inflicting serious bodily or mental harm, or imposing a regime of constraints designed to eliminate the group over time, such as forcible prevention of births or transfer of children to another ethnic group. Finally, culpability is established not just on the basis of the act of genocide, but also on conspiracy to commit the act, incitement of it, attempts to commit it, and complicity in it.

The argument in this book is that the first test is now met in Rakhine and that the leadership of the Rakhine ethnic parties is culpable. At the very least, the regime in the detention camps is such that it is designed ‘to